



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP
Subject: Memorandum of Understanding between the City of Cheyenne and Goat Systems, LLC, for clarification and assurances of City development and reimbursement processes.
Date: February 13, 2023

Background:

The item for consideration is a Memorandum of Understanding between the City of Cheyenne and Goat Systems, LLC.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 2/13/2023
- Public Services Committee 2/14/2023
- Final consideration 2/27/2023

The developer intends to develop a data center campus on Lot 1, Block 1, High Plains Business Park. The developer seeks assurances from the City regarding development processes prior to commencing development activity on the property. The intent of this MOU is to affirm the allowance of certain uses on the property, summarize applications and further agreements anticipated for the project, and clarify when a vested right is established.

Specifically, this MOU clarifies that a data center use and accessory uses, such as storage buildings and alternative energy facilities related to the data center campus, are permissible on the LI Light Industrial zoned property. The MOU also details that a vested right to develop in accordance with a Site Plan may be established upon approval and subsequent action by the developer within the UDC-specified time period, two-years after approval. The MOU also references a future development agreement regarding the construction and timing of public improvements associated with the development and the City's Administrative Plat process which could be utilized to add or relocate any easements as utility infrastructure is developed.

This agreement expires twenty five years from the date of approval, if the developer does not commence development of the project within two years of Site Plan application approval, or if the land is transferred to another business entity that is not an affiliate or subsidiary of the Developer, whichever is less. The agreement may be extended to contiguous properties acquired by the developer.

This agreement is not intended to grant the developer any specific permissions or waivers that are not commonly available to all developers.

Attachments:

1. Memorandum of Understanding

Contract No. _____

**MEMORANDUM OF UNDERSTANDING
BETWEEN CITY OF CHEYENNE, A MUNICIPAL CORPORATION AND
GOAT SYSTEMS, LLC**

THIS MEMORANDUM OF AGREEMENT (Agreement) made this _____ day of _____, 2023, by and between Goat Systems LLC, a limited liability corporation, (Developer) and City of Cheyenne, a municipal corporation, (City) provides that:

WHEREAS, Developer is owner of certain real property (Property) in City of Cheyenne legally described as Lot 1, Block 1, High Plains Business Park as shown on Exhibit A which is attached hereto and incorporated herein;

WHEREAS, Developer proposes to develop on the Property a data center campus and ancillary uses in phases over an extended period of time;

WHEREAS, City recognizes the fiscal impact is a benefit to the community;

WHEREAS, Developer seeks assurances from the City regarding development processes;

WHEREAS, a data center campus and ancillary uses are permissible uses in the LI Light Industrial zoning district subject to Site Plan approval and compliance with applicable development regulations;

WHEREAS, the City does not prohibit the installation of alternative energy facilities accessory to a development provided such facilities meet the review criteria for Site Plan approval within the specified district;

WHEREAS, the City Site Plan process of Article 2 of the Unified Development Code protects the public and neighboring property owners from public health, safety or general welfare concerns;

WHEREAS, Developer seeks clarification of the vested right established by approval of a Site Plan to aide in assurances to allow the Developer to proceed with a phased development approach;

WHEREAS, Developer seeks clarification on participation requirements for public improvements and reimbursement of public improvements associated with the Project;

WHEREAS, the City Administrative Plat process of Article 2 of the Unified Development Code allows for the administrative modification of easements with the consent of easement holders, without public notice or hearing;

WHEREAS, development of the Property requires offsite public improvements such as utilities and transportation infrastructure;

WHEREAS, Developer and City agree that Developer is to have no greater or lesser rights or obligations than those available to or imposed upon any other developer in the community under the Cheyenne Municipal Code. This Agreement, the Development Agreement and other agreements between the Parties are for purposes of memorializing those rights and obligations agreed upon with respect to the Project;

WHEREAS, Developer is eligible to file for reimbursement for offsite public improvements in accordance with the provisions of Title 1, Chapter 16 of the Cheyenne Municipal Code;

WHEREAS, certain City assurances will allow Developer to develop the Project in multiple phases as well as associated public improvements with reasonable expectations; and,

WHEREAS, Developer desires this agreement be allowed to extend to contiguous properties acquired by Developer in the future;

NOW, THEREFORE, the City and Developer in consideration of the mutual covenants and promises set forth herein hereby agree, covenant, and represent as follows:

1. The foregoing recitals are adopted as binding provisions of this Agreement.
2. Pursuant to Article 2 of the Unified Development Code, the City shall accept a Site Plan application for the Project detailing the first phase of the Project and a less-detailed general design for subsequent phases. The City's approval of said Site Plan shall establish a vested right for subsequent phases of the Project to develop in accordance with the approval, if the first phase is acted upon within two (2) years of Site Plan approval (e.g., commencement of site grading or access road construction or design).
3. City agrees to work with Developer to execute a Development Agreement without delay to detail phasing of public improvements.
4. Reimbursement expectations shall be subject to filing of a reimbursement request pursuant to the reimbursement provisions of Title 1, Chapter 16 of the Cheyenne Municipal Code.
5. The Developer may extend the rights and approvals under this Agreement and the Development Agreement to geographical territory acquired by the Developer provided the territory is contiguous with the Property or prior extensions. Contiguity will not be adversely affected by the existence of a platted street or alley, a public or private right-of-way, a public or private transportation right-of-way, a lake, stream, reservoir or other natural or artificial waterway located between the property and territory sought to be added. Such additional geographical territory shall thereafter be included in the agreement. Developer shall provide written notice to the City ten (10) days prior to acquisition of any geographical territory.

6. Neither this Agreement nor any provision hereof may be changed, waived, discharged, or terminated orally and may only be modified or amended by an instrument in writing, signed by the parties hereto.
7. All rights, powers, and remedies herein given the City are cumulative and not alternative, and are in addition to all other statutes or rules of law. Any forbearance or delay by the City in exercising the same shall not be deemed to be a waiver thereof and the exercise of any right or partial exercise thereof shall not preclude the further exercise thereof and the same shall continue in full force and effect until specifically waived by an instrument in writing executed by the City. All representations, warranties, covenants, and the provisions hereof shall be binding upon Developer, its successors and assigns and inure to the benefit of the City, its successors, and assigns.
8. All notices shall be in writing and shall be deemed to have been sufficiently given or served when sent by certified mail when addressed to the parties at the addresses set forth below. Such addresses may be changed by notice to the other party given in the same manner.
9. This Agreement and all covenants, agreements, representations, and warranties made herein shall survive the execution of this Agreement and shall continue in full force and effect so long as the Agreement is outstanding and not terminated pursuant section 10.
10. If any provision of this Agreement is held invalid, such invalidity shall not affect other provisions of this Agreement which can be given effect without the invalid provisions and, to this end, the provisions of this Agreement are hereby declared severable.
11. This Agreement expires twenty-five (25) years from the date of signing by all parties, if the Project does not commence within two (2) years of Site Plan approval, or if it transferred into another business entity that is not an affiliate or subsidiary of Developer, whichever occurs first.
12. No party may assign or transfer the responsibilities or agreements made herein without the prior written consent of the non-assigning party, which approval shall not be unreasonably withheld.
13. The City does not waive governmental immunity by entering into this Agreement and specifically retains all immunities and defenses available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, et seq., and all other applicable laws. Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity.
14. The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the

parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

15. Each Party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither Party agrees to insure, defend, or indemnify the other.
16. Subject to the Parties' rights and obligations pursuant to the Cheyenne Municipal Code, this Agreement (and any documents or applications referenced herein) represents the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.
17. **Anti-Corruption Compliance.** In connection with the negotiation and performance of this Agreement, the Parties, on behalf of themselves and their agents and representatives, represent, warrant, and covenant that each Party has complied with and that each Party has not engaged in and shall refrain from offering, promising, paying, giving, authorizing the paying or giving of, soliciting, or accepting or agreeing to accept Anything of Value, directly or indirectly to or from (a) any Government Official to (i) influence any act or decision of a Government Official in their official capacity, (ii) induce a Government Official to use their influence with a Government Authority, or (iii) otherwise secure any improper advantage; or (b) any person or entity in any manner that would constitute bribery or an illegal kickback, or would otherwise violate any applicable anti-corruption law, rule, or regulation. "Anything of Value" includes, but is not limited to, money, cash or a cash equivalent (including "grease", "expediting" or facilitation payments), discounts, rebates, gifts, meals, entertainment, hospitality, charitable contributions, sponsorships, use of materials, facilities or equipment, transportation, lodging, or promise of employment. "Government Authority" means any multinational, national, regional, or local government, governmental or public department, court, commission, board, bureau, agency, ministry, university, political party, or other governmental instrumentality, public international organization, or subdivision, agent, commission, board, or authority of any of the foregoing. "Government Official" means any official or employee (or relative or household member thereof), or agent of a Government Authority; members of royal families; or candidates for political office. If either Party becomes aware of any violation or suspected violation of this Section 15, it must provide prompt written notice to the other Party setting forth the relevant facts and circumstances. The Parties will, consistent with applicable laws, cooperate with the Developer in good faith to review any suspected violations of this Section 15, including by providing reasonable access to relevant documentation.
18. **Ethical Business Practices; No Procurement Process.** In connection with the negotiation and performance of this Agreement, the City represents and warrants that it has complied and covenants that it shall comply with all applicable local, state and federal laws, rules and regulations, including without limitation anti-corruption laws, rules, and regulations, and that it has used and shall use only legitimate and ethical business practices. The performance of any obligations under

this Agreement does not require the Developer to submit any bid or otherwise participate in any procurement process of the City or to undertake any other obligations required by procurement laws and regulations of the City.

- 19. This Agreement may be executed in counterparts.
- 20. In witness whereof, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement.

AGREED TO AND ENTERED INTO BY THE UNDERSIGNED PARTIES THIS ____

DAY OF _____ 2023.

ATTEST:

APPROVED:

City

Kristina J. Jones

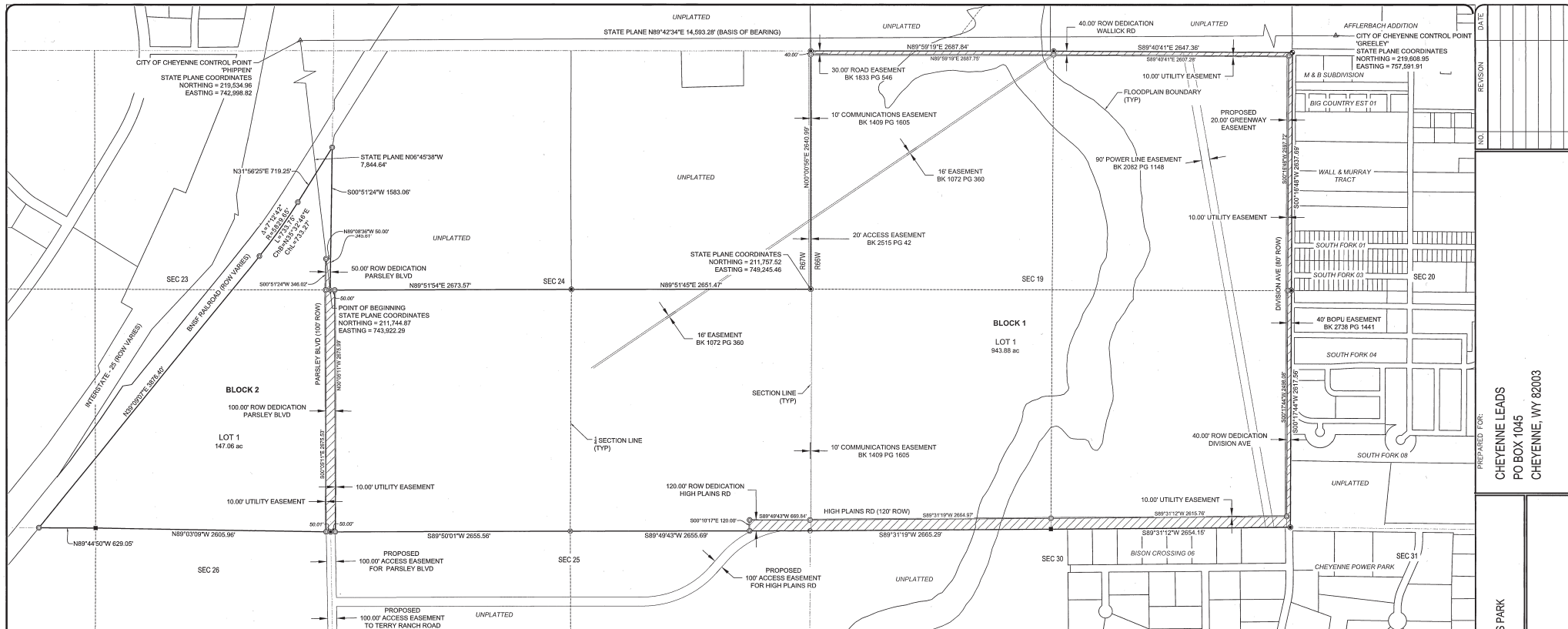
Patrick J. Collins, Mayor

APPROVED:

Developer

Goat Systems, LLC
a Delaware limited liability company

Pamela Jasinski, President



LEGEND

- FOUND IRON PIPE
- FOUND IRON ROD
- FOUND PK OR MAG NAIL
- FOUND ALUMINUM CAP
- FOUND BRASS CAP
- FOUND BRASS STONE
- SET 1/2 REBAR WITH 2" ALUMINUM CAP AND PLS 12045
- CITY MONUMENT TIE
- MEASURED DATA THIS SURVEY
- ROW DEDICATION

NOTES:

- PUBLIC WATER AND WASTE WATER SYSTEMS TO CONNECT TO EXISTING CHEYENNE BOARD OF PUBLIC UTILITIES.
- FIRE PROTECTION WILL BE PROVIDED BY THE CITY OF CHEYENNE FIRE DEPARTMENT.
- ALL STREETS TO BE DEDICATED TO THE PUBLIC AND MAINTAINED BY THE CITY OF CHEYENNE. RIGHT OF WAY ACRES = 32.62 ACRES.
- THERE WILL BE 10' UTILITY EASEMENTS ABUTTING ALL ROADWAY RIGHT OF WAYS FOR LOCAL UTILITY COMPANIES WITHIN THE BOUNDARIES OF THIS PLAT UNLESS OTHERWISE NOTED.

BASIS OF BEARINGS

CITY OF CHEYENNE CONTROL POINTS (PHIPPEN AND GREELY, BEARING OF N89°42'34"E AND DISTANCE OF 14593.31 FEET TO ESTABLISH BOUNDARY.

GROUND COORDINATES SHOWN ARE BASED ON US STATE PLANE 1983, WYOMING STATE PLANE EAST PIPEZONE 4901 VERT. TO CONVERT TO STATE PLANE COORDINATES ADD 100,000 FT TO THE NORTHING AND 200,000 FT TO THE EASTING AND MULTIPLY BY A PROJECT SCALE FACTOR OF 0.99965230. EXAMPLE: POINT OF BEGINNING (P.O.B.) GROUND NORTHING = 111,818.496 GROUND EASTING = 544,180.875 STATE PLANE N = (111,818.496 + 100,000) * 0.99965230 = 211,744.866 STATE PLANE E = (544,180.875 + 200,000) * 0.99965230 = 743,922.291 ORIGINAL FIELD SURVEY BY: AVI PC JULY 2022

LEGAL DESCRIPTION

A PARCEL OF LAND BEING SITUATED IN A PORTION OF SECTIONS 23 AND 24 OF TOWNSHIP 13 NORTH, RANGE 67 WEST, AND SECTION 19, TOWNSHIP 13 NORTH, RANGE 68 WEST OF THE 6TH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE WEST QUARTER CORNER OF SAID SECTION 24 BEING MONUMENTED BY A FOUND IRON ROD; THENCE ALONG THE NORTH LINE OF THE SOUTH HALF OF SAID SECTION 24, N89°51'45"E A DISTANCE OF 3073.97 FEET TO THE CENTER QUARTER CORNER OF SAID SECTION 24 BEING MONUMENTED BY A FOUND ALUMINUM CAP; THENCE CONTINUING ALONG SAID NORTH LINE N89°51'45"E A DISTANCE OF 2654.19 FEET TO THE EAST QUARTER CORNER OF SAID SECTION 19 BEING MONUMENTED BY A FOUND ALUMINUM CAP; THENCE ALONG THE SOUTH LINE OF SAID SECTION 19, S89°31'12"W A DISTANCE OF 2654.19 FEET TO THE SOUTH QUARTER CORNER OF SAID SECTION 19 BEING MONUMENTED BY A FOUND STONE; THENCE S89°31'12"W A DISTANCE OF 2654.19 FEET TO THE SOUTH QUARTER CORNER OF SAID SECTION 19 BEING MONUMENTED BY A FOUND IRON PIPE; THENCE ALONG THE SOUTH LINE OF SAID SECTION 24, S89°49'43"W A DISTANCE OF 2655.56 FEET TO THE WEST QUARTER CORNER OF SAID SECTION 24 BEING MONUMENTED BY A FOUND IRON ROD; THENCE S89°49'43"W A DISTANCE OF 2655.56 FEET TO THE WEST QUARTER CORNER OF SAID SECTION 23 BEING MONUMENTED BY A FOUND ALUMINUM CAP; THENCE ALONG THE SOUTH LINE OF SAID SECTION 23, N89°03'09"W A DISTANCE OF 2655.56 FEET TO THE SOUTH QUARTER CORNER OF SAID SECTION 23 BEING MONUMENTED BY A FOUND STONE; THENCE ALONG THE SOUTH LINE OF SAID SECTION 23, N89°45'01"W A DISTANCE OF 629.05 FEET TO THE EASTERN RIGHT OF WAY LINE OF THE BNSF RAILROAD RIGHT OF WAY; THENCE ALONG SAID EASTERN RIGHT OF WAY OF WAY N89°00'01"E A DISTANCE OF 3076.40 FEET TO THE BEGINNING OF A RAILROAD CURVE CONCAVE TO THE NORTHWEST SAID CURVE HAVING A RADIUS OF 600.05 FEET, A CHORD BEARING OF N30°32'46"E, A CHORD LENGTH OF 733.27 FEET, AND A CENTRAL ANGLE OF 7°12'42"; THENCE ALONG ARC OF SAID CURVE A DISTANCE OF 733.27 FEET TO A POINT; THENCE N1°56'25"E A DISTANCE OF 719.25 FEET TO THE WEST LINE OF THE NORTHWEST QUARTER OF SAID SECTION 24; THENCE ALONG SAID WEST LINE OF THE NORTHWEST QUARTER 500°51'24"W A DISTANCE OF 1593.08 FEET TO THE POINT OF BEGINNING.

SAID PARCEL CONTAINS 1,123.56 ACRES MORE OR LESS.

DEDICATION

KNOW ALL MEN BY THESE PRESENTS, THAT DOUG SAMUELSON, MANAGING MEMBER OF SWAN RANCH LLC, OWNERS IN FEE SIMPLE OF THE LAND EMBRACED IN THIS FINAL PLAT OF "HIGH PLAINS BUSINESS PARK" DO HEREBY DECLARE THAT THE SUBDIVISION OF SAID LAND IS WITH THEIR FREE ACT AND DEED AND IN ACCORDANCE WITH THEIR DESIRES, DO HEREBY DEDICATE TO THE PUBLIC THE RIGHTS OF WAY SHOWN HEREON AND AS PER NOTE #4.

Doug Samuelson
DOUG SAMUELSON, MANAGING MEMBER
SWAN RANCH LLC

ACKNOWLEDGEMENTS

STATE OF Wyoming)
COUNTY OF Laramie) SS

THE FOREGOING INSTRUMENT WAS ACKNOWLEDGED BEFORE ME BY DOUG SAMUELSON, MANAGING MEMBER OF SWAN RANCH LLC, THIS 13TH DAY OF December, 2022, WITNESS MY HAND AND OFFICIAL SEAL.

Sherry Priestner
NOTARY PUBLIC, Wyoming

MY COMMISSION EXPIRES 1/30/26

APPROVALS

APPROVED BY THE CHEYENNE PLANNING COMMISSION THIS 28TH DAY OF October, 2022.

DEVELOPMENT DIRECTOR

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, THIS 14TH DAY OF November, 2022.

MAYOR

Kevin J. Jolly
CITY CLERK

DEDICATION

KNOW ALL MEN BY THESE PRESENTS, THAT PAMELA JASINSKI, PRESIDENT, GOAT SYSTEMS, LLC, A DELAWARE LIMITED LIABILITY COMPANY AND EACH OF ITS RESPECTIVE AFFILIATES, SUCCESSORS AND ASSIGNS, OWNERS IN FEE SIMPLE OF THE LAND EMBRACED IN THIS FINAL PLAT OF "HIGH PLAINS BUSINESS PARK" DO HEREBY DECLARE THAT THE SUBDIVISION OF SAID LAND IS WITH THEIR FREE ACT AND DEED AND IN ACCORDANCE WITH THEIR DESIRES, DO HEREBY DEDICATE TO THE PUBLIC THE RIGHTS OF WAY SHOWN HEREON AND AS PER NOTE #4.

Pamela Jasinski
PAMELA JASINSKI, PRESIDENT, GOAT SYSTEMS, LLC A DELAWARE LIMITED LIABILITY COMPANY AND EACH OF ITS RESPECTIVE AFFILIATES, SUCCESSORS AND ASSIGNS

ACKNOWLEDGEMENTS

STATE OF Delaware)
COUNTY OF New Castle) SS

THE FOREGOING INSTRUMENT WAS ACKNOWLEDGED BEFORE ME BY PAMELA JASINSKI, PRESIDENT, GOAT SYSTEMS, LLC, A DELAWARE LIMITED LIABILITY COMPANY AND EACH OF ITS RESPECTIVE AFFILIATES, SUCCESSORS AND ASSIGNS, STEWART TITLE GUARANTY COMPANY AND TOWNSQUARE TITLE OF WYOMING, LLC, THIS 22ND DAY OF December, 2022, WITNESS MY HAND AND OFFICIAL SEAL.

Julianne R. Smith
NOTARY PUBLIC, Delaware

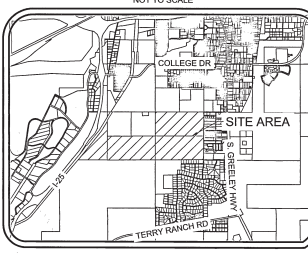
MY COMMISSION EXPIRES December 20, 2024

Julianne R. Smith
NOTARY PUBLIC, Delaware

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, THIS 14TH DAY OF November, 2022.

Kevin J. Jolly
CITY CLERK

BEING SITUATED IN A PORTION OF SECTIONS 23 AND 24, TOWNSHIP 13 NORTH, RANGE 67 WEST, AND SECTION 19, TOWNSHIP 13 NORTH, RANGE 68 WEST OF THE 6TH P.M., COUNTY OF LARAMIE, STATE OF WYOMING PREPARED NOVEMBER 2022



CERTIFICATE OF SURVEYOR

I, ADAM E. DESCHLER, A PROFESSIONAL LAND SURVEYOR LICENSED IN THE STATE OF WYOMING DO HEREBY CERTIFY THAT THIS FINAL PLAT WAS PREPARED FROM THE RECORDS AND FIELD NOTES OF A SURVEY CONDUCTED BY ME OR UNDER MY DIRECT SUPERVISION AND THAT ALL DIMENSIONS AND OTHER DETAILS ARE CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF.

RECORD # 850849
RECORDED 1/24/2023 AT 8:47 AM PG 13 PGE 1
DEED & L.S. DIVISION OF LARAMIE COUNTY, WY. PAGE 1 OF 1

DATE	REVISION	NO.

PREPARED FOR:
CHEYENNE LEADS
PO BOX 1045
CHEYENNE, WY 82003

PROJECT:
HIGH PLAINS BUSINESS PARK

DRAWING TITLE:
FINAL PLAT

ENGINEERING
PLANNING
SURVEYING
1103 OLD TOWN LANE, SUITE 101
CHEYENNE, WY 82009
AVI@AVPC.COM

DATE: Nov 14, 2022

DRAWN BY: ACR

DESIGNED BY: BE

CHECKED BY: AED

JOB NO.: 4555

DRAWING NO. 1 OF 1